

Court No. - 3

Case :- WRIT - C No. - 27504 of 2021

Petitioner :- Mohd. Mukhtar Rizvi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

As prayed, put up on 12.11.2021 as fresh by way of last opportunity.

Order Date :- 23.10.2021

Saurabh

Court No. - 21

Case :- WRIT - C No. - 27504 of 2021

Petitioner :- Mohd. Mukhtar Rizvi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Shri Anil Kumar Pandey, learned counsel for the petitioner and Shri Sushil Kumar Pandey, learned counsel for the respondents.

Challenge has been raised to the provisional assessment order dated 21.03.2020 issued against him towards electricity dues.

Upon hearing learned counsel for the parties, it transpires that against the provisional assessment order dated 21.03.2020, the petitioner has submitted his written objections on 03.04.2020 before the respondent no. 2. The said representation has remained pending for consideration. In the meanwhile, the recoveries are being pressed against the petitioner.

Under Section 126 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005, it is mandatory on part of the Distribution Corporation to serve a provisional demand on the consumer as may allow him an opportunity to file objection. If such objection is filed within time, the Distribution Corporation would remain obligated to first adjudicate the same before seeking recovery of its demand. Only in terms of the decision that may be passed upon the objections filed, the recoveries may arise.

In such facts, no useful purpose would be served in keeping the petition pending or calling for a counter affidavit, in view of the order proposed to be passed.

Accordingly, the writ petition is ***disposed of*** with the following directions:

(i) the petitioner may file a copy of this order before the respondent no. 2 within a period of two weeks from today. Thereupon, respondent no. 2 shall make available to the petitioner all adverse material that is being relied in support of the provisional assessment order dated 21.03.2020 (annexed as Annexure No. 4 to the petition);

(ii) upon being thus confronted with the adverse material, the

petitioner shall have a right to file a detailed further objection within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no. 2 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of two weeks therefrom.

For a period of two months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

All further recovery shall abide by the decision to be made by the respondent no. 2.

Order Date :- 17.11.2021

Saurabh

Court No. - 21

Case :- WRIT - C No. - 27504 of 2021

Petitioner :- Mohd. Mukhtar Rizvi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

In Re: Order on Civil Misc. Correction Application No. Nil of 2021.

Heard learned counsel for the parties.

This correction application has been filed to correct the date '03.04.2020' as '03.04.2021', in the order dated 17.11.2021.

Accordingly, the date '**03.04.2020**' mentioned in the third line of the third paragraph of the order dated 17.11.2021 is scored out and shall be read as '**03.04.2021**'.

The correction application stands ***allowed***.

The petitioner shall comply the order dated 17.11.2021 within further two weeks from today.

Order Date :- 7.12.2021

Saurabh